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Case Name: *In Re Maxar Data Security Litigation*

Case No.: 24CV452108 (consolidated with 24CV454292)

This class action arises from a purportedly preventable data breach due to defendant Maxar Space LLC's and Maxar Space Robotics LLC's (collectively "Defendant" or "Maxar") inadequately protected computer network.

Before the Court is plaintiffs Cynthia Replogle's and Philipp Covington's (collectively, "Plaintiffs"): (1) motion for final approval of settlement; and (2) motion for attorneys' fees, expenses, and service awards, which are both unopposed. As discussed below, the Court GRANTS Plaintiffs' motion for final approval; and GRANTS Plaintiffs' motion for attorneys' fees, expenses, and service awards.

VII. BACKGROUND

According to the allegations of the operative Complaint, on October 11, 2024, Defendant discovered that unauthorized cybercriminals had conducted a successful cybersecurity attack whereby they infiltrated Defendant's inadequately secured computer network and gained unauthorized access to the personal information of likely thousands of current and former employees whose data was stored within Defendant's system. (Complaint, ¶¶ 1, 21.) Following a forensic investigation, it was determined that the type of Personal Information accessed by cyber criminals which included names, social security numbers, home addresses, gender, employment information, and business contact information of Plaintiff and Class Members. (Complaint, ¶ 22.)

Based on the notice that Plaintiff received, it is plausible and likely that Plaintiff's personal information was stolen in the data breach. (Complaint, ¶ 23.) Defendant had obligations created by industry standards, common law, statutory law, and its own assurances and representations to keep Plaintiffs' and Class Members' information confidential and to protect it from unauthorized access. (Complaint, ¶ 25.) Defendant failed to spend sufficient resources on preventing external access, detecting outside infiltration, and training its employees to identify email-borne threats and defend against them. (Complaint, ¶ 26.)

Based on the foregoing, Plaintiff Replogle initiated this action on November 19, 2024, with the filing of the operative Complaint, which asserts the following causes of action: (1) negligence; (2) breach of implied contract; (3) violation of the California Consumer Privacy Act (Civ. Code, §§ 1798.100, *et seq.*); and (4) violation of the California Consumer Records Act (Civ. Code §§ 1798.80, *et seq.*) On April 15, 2025, the Court (Hon. Adams) issued its order consolidating the instant action with Plaintiff Covington's case. On March 26, 2026, the

Court issued its order which granted Plaintiffs' motion for preliminary approval of class action settlement.

Plaintiffs now move for an order finally: approving the class action settlement; certifying the class and subclass for settlement purposes; confirming of Plaintiffs as Class representatives; approving John Nelson and A. Brooke Murphy as Class Counsel; and approving attorneys' fees, costs, and service awards for Plaintiffs.

VIII. MOTION FOR FINAL APPROVAL

C. LEGAL STANDARD FOR SETTLEMENT APPROVAL

Generally, "questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba, supra*, 91 Cal.App.4th at pp. 244–245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of relevant factors, depending on the circumstances of each case. (*Wershba, supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the "proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned." (*Ibid.*, citation and internal quotation marks omitted.) The trial court also must independently confirm that "the consideration being received for the release of the class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation." (*Kullar, supra*, 168 Cal.App.4th at p. 129.) Of course, before performing its analysis the trial court must be "provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise." (*Id.* at pp. 130, 133.)

D. Settlement Class

Plaintiffs request certification of the following Class and Subclass for settlement purposes.

Class: All living persons residing in the United States whose PII was potentially compromised in the Data Incident announced by Maxar Space in or around October of 2024, including all persons who received a breach of notice letter.

California Subclass: All living persons residing in California whose PII was potentially compromised in the Data Incident announced by Maxar Space in or around October of 2024, including all persons who received a breach notice letter.

Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court”

Section 382 requires the plaintiff to demonstrate by a preponderance of the evidence: (1) an ascertainable class and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, 332 (*Sav-On Drug Stores*).) “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.)

In the settlement context, “the court’s evaluation of the certification issues is somewhat different from its consideration of certification issues when the class action has not yet settled.” (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 93.) As no trial is anticipated in the settlement-only context, the case management issues inherent in the ascertainable class determination need not be confronted, and the court’s review is more lenient in this respect. (*Id.* at pp. 93–94.) But considerations designed to protect absentees by blocking unwarranted or overbroad class definitions require heightened scrutiny in the settlement-only class context, since the court will lack the usual opportunity to adjust the class as proceedings unfold. (*Id.* at p. 94.)

At preliminary approval, the Court provisionally certified the above-described Class and Subclass, and it does not find any reasons to depart from that ruling at this time. Consequently, the Court will certify the Class and Subclass for settlement purposes as requested.

E. Terms and Administration of Settlement

Plaintiffs do not provide a gross settlement amount. The Settlement states that attorneys’ fees and costs of up to \$125,000 and class representative awards up to \$2,000 each, and settlement administration costs will be paid by Maxar separate and apart from the settlement payment.

There are two components to the Settlement Class: (1) the nationwide Class; and (2) the California Subclass.

All Settlement Class Members are eligible to claim up to \$3,500 in reimbursement for out-of-pocket losses incurred as a result of the Data Incident. All Settlement Class Members may submit a claim for reimbursement of “Lost Time”—this amount is included within the \$3,500 cap for out-of-pocket expenses. California Subclass members are entitled to submit a claim for \$100 cash payment to address the California statutory claims—payments of this type will be subject to an aggregate cap of \$15,000. Therefore, if the cap is reached, these payments will be subject to a *pro rata* reduction based on the number of claims made. All members of the Settlement Class who submit a valid Claim Form shall be provided access to credit monitoring services for a period of three (3) years from the date a member of the Settlement Class claims the offer as provided in the short notice.

In exchange for settlement, Class Members who do not opt out will release:

[A]ny and all past, present, and future claims, demands, actions, causes of action, costs, expenses, attorneys’ fees, losses, rights demands, charges, complaints, suits petitions, obligations, debts, penalties, damages, or liabilities of any nature whatsoever, known or unknown, liquidated or unliquidated, accrued or unaccrued, fixed or contingent, direct or derivative, matured or unmatured, in law or equity, and any other form of legal or equitable relief that has been asserted, was asserted, or could have been asserted, by any Settlement Class Member against any of the Released Parties, reasonably related to the operative facts alleged in or otherwise described by the Litigation or arising out of or in any way related to other Data Incident and/or the Released Parties’ recordkeeping or data security policies and practices, whether or not pleaded or otherwise asserted in the Litigation, including any and all damages, losses, or consequences thereof.

The notice period has now been completed. Orlando Castillejos, a Senior Project Manager of Client Services for settlement administrator Simpluris, Inc. (“Simpluris”) submitted a declaration in support of the instant motion. On April 3, 2026, defense counsel provided Simpluris with the Class list. As the settlement administrator, Simpluris was charged with:

- (a) Establishing and maintaining an Interactive Voice Response (“IVR”) settlement-specific toll-free telephone number, available 24 hours, offering the opportunity to listen to frequently asked questions;
- (b) Establishing a P.O. Box to receive undeliverable notices, Claims Forms, requests for exclusion, objections to the proposed Settlement, and any other correspondences submitted by Settlement Class Members;
- (c) Developing and maintaining an interactive Settlement Website, which hosts relevant settlement documents; allows Settlement Class Members to submit a Claims Form; and complies with data privacy requirements, including a detailed Privacy Policy;
- (d) Obtaining the Class list and mailing direct notice of the Settlement, consisting of notice via email and notice with postal mail that provide information on how to submit a Claim, the deadline to do so, and other relevant dates;
- (e) Receiving and processing Claims Forms, requests for exclusion, objections and related Class correspondence;
- (f) Providing counsel with weekly status reports;

- (g) Establishing and maintaining a 26 C.F.R. § 1.468B-1 compliant Qualified Settlement Fund;
- (h) Calculating, processing, and issuing payments to Settlement Class Members who submit valid claims;
- (i) Preparing and filing all applicable tax forms and tax returns with state and federal agencies; and
- (j) Other tasks as the parties mutually agree or the Court orders Simpluris to perform.

On April 17, 2026, Simpluris sent the email notices to 1,678 Class Members with a valid email. As of September 1, 2026, 1,656 email notices were delivered and 22 were returned as undeliverable. On May 29, 2026, it sent supplemental email notices to 408 email addresses provided by defense counsel. As of September 1, 2026, 397 supplemental email notices were delivered and 11 were returned as undeliverable. On June 16, 2026, Simpluris sent 1,232 2nd supplemental email notices to Class Members who were sent notices to their Maxar work email addresses and as of September 1, 2026, 1,219 2nd supplemental email notices were delivered and 13 were returned as undeliverable.

On April 29, 2026, Simpluris mailed the short form notice to 19 Class Members with valid mailing addresses who did not have valid email addresses. On May 29, 2026, Simpluris mailed a supplemental short form notice to 301 mailing addresses provided by defense counsel. As of September 1, 2026, 1 short form notice and 31 supplemental short form notices have been returned by USPS. Of the short form notices, the one short form notice was remailed and none are considered undeliverable. Of 31 returned supplemental, 28 were remailed and 3 have been determined to be undeliverable.

On April 16, 2026, Simpluris made the Settlement Website available and as of September 1, 2026, it has received 10,866 views and 4,793 unique visitors. On April 17, 2026, the toll-free number was made public and it will remain in operation through settlement administration. As of August 2, 2026, Simpluris was able to reach 97.21% of the Settlement Class via direct notice.

The deadline to respond was June 16, 2026. As of September 1, 2026, Simpluris received 0 objections and 0 requests for exclusions and it has received and processed 80 Claims Forms, which represents a claims rate of approximately 4.77%.

At the preliminary approval, the Court found that the proposed settlement provides a fair and reasonable compromise to Plaintiffs' claims. It finds no reason to depart from these findings now, especially considering that there are no objections. Therefore, the Court finds that the Settlement is fair and reasonable for the purposes of final approval.

IX. MOTION FOR ATTORNEYS' FEES, LITIGATION COSTS, AND PLAINTIFFS' SERVICE AWARD

Class Counsel seeks approval of a fee award of \$125,000, which is to be paid by Maxar separate from the Class benefits.

The Court has an independent right and responsibility to review the requested attorney fees and only award so much as it determines reasonable. (See *Garabedian v. Los Angeles Cellular Telephone Co.* (2004) 118 Cal.App.4th 123, 127-128.) The lodestar method is a recognized method for calculating attorney fees in civil class actions and is appropriately employed in this case. (See *Wershba, supra*, 91 Cal.App.4th at p. 254 [“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.”]; *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556–557 [trial court properly awarded attorney fees in consumer class action based on lodestar method where there was no “common fund” justifying a percentage recovery].)

The lodestar (or touchstone) is produced by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate. Once the court has fixed the lodestar, it may increase or decrease that amount by applying a positive or negative ‘multiplier’ to take into account a variety of other factors, including the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented.

(*Consumer Privacy Cases, supra*, 175 Cal.App.4th at p. 556, internal citation and quotations omitted.)

Class Counsel provides a lodestar figure of \$88,273.80, based on 130.70 hours of work at billing rates ranging from \$277 to \$1,227 per hour, resulting a multiplier of 1.41. This is within the range of multipliers that courts typically approve. (See *Wershba, supra*, 91 Cal.App.4th at p. 255 [“[m]ultipliers can range from 2 to 4 or even higher”]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court’s own survey of large settlements funding a range of 0.6-19.6, with most (20 to 24, or 83%) from 1.0-4.0 and a bare majority (13 of 24, or 54%) in the 1.5-3.0 range].) Moreover, the hours and rates are reasonable based on the information provided in Class Counsel’s joint declaration. Class Counsel also incurred \$3,975.20 in costs. The combined fee and costs award of \$125,000 is within the range approved by courts. Thus, the fee and costs award requested by Class Counsel is reasonable and consequently, it is approved.

Lastly, Maxar agreed to pay service awards to Plaintiffs in the amount of \$2,000 each—totaling \$4,000, separate from the relief being made available to the Class.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S. Dist. LEXIS 29837, at *29.)

Plaintiffs submitted their respective declarations in support of the request. Based on the information in their declarations pertaining to time spent on this action and conduct by Plaintiffs, the duration of this litigation, and the risks taken by Plaintiffs, the Court finds that Plaintiffs are entitled to the service awards and the amount requested is reasonable. Thus, the request for the service awards is approved.

X. CONCLUSION

In accordance with the above, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiffs' motion for attorneys' fees, expenses and service awards is GRANTED. Additionally, Plaintiffs' motion for final approval is GRANTED. The following Class and Subclass are certified for settlement purposes only:

Class: All living persons residing in the United States whose PII was potentially compromised in the Data Incident announced by Maxar Space in or around October of 2024, including all persons who received a breach of notice letter.

California Subclass: All living persons residing in California whose PII was potentially compromised in the Data Incident announced by Maxar Space in or around October of 2024, including all persons who received a breach notice letter.

Judgment will be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiffs and the members of the Class will take from the operative complaint only the relief set forth in the settlement agreement and this order and judgment. Pursuant to Rule 3.769(h) of the California Rules of Court, the Court will retain jurisdiction over the parties to enforce the terms of the settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **May 20, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, Class Counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted pursuant to Code of Civil Procedure section 384, subdivision (b); the status of any unresolved issues; and any other matters appropriate to bring to the Court's attention. Counsel shall also submit an amended judgment as described in Code of Civil Procedure section 384, subdivision (b). Counsel may appear at the compliance hearing remotely.

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